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File No.: EXP202409541

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 20, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On June 20, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against TELEFÓNICA MÓVILES ESPAÑA, S.A. (hereinafter, the respondent) for not having properly attended to their right of access to their personal data.

The complainant states that they were a customer of the respondent company, for a mobile line, until February 1, 2023. They indicate that they requested from the respondent company the list of outgoing numbers from the mobile line ***PHONE.1 of which they were a customer (the calls made from their terminal), without being provided with the requested list.

The complainant informs that they filed a complaint with the Secretary of State for Telecommunications and Digital Infrastructures, which forwarded their complaint to this AEPD.

They provide the thread of emails exchanged between the complainant and the customer service and help service of the respondent company in which the complainant requests the details of the outgoing calls made, especially those concerning the invoice of ***DATE.1, as it is of interest for a judicial proceeding, given that the invoices sent to them do not show the detailed calls, only indicating 119 calls with a total of 453 minutes. The complainant also reported the facts to the OMIC of Antequera.

The complainant indicates:

“(…) FOURTH. That Article 22 of Royal Decree 899/2009, of May 22, which approves the Charter of Rights of Users of Electronic Communications Services, establishes:

"1. In accordance with the provisions of the previous article, end users shall have the right to receive invoices from public telephone service operators for the charges incurred, properly differentiating the concepts of prices charged for the services provided, and, upon request, to receive separate invoices for additional charging services.

2. Likewise, end users of the public telephone service shall have the right to obtain detailed billing, without prejudice to the right of subscribers not to receive itemized invoices, with the basic level of detail defined as that which includes the separate identification of the following elements:

- a) The billing period.
- b) The fixed monthly fee.
- c) Other fixed monthly charges.
- d) Any non-recurring fixed fee.
- e) Details of all billed communications,
- f) Aggregated data by differentiated tariff groups, such as: metropolitan, national, international, to mobiles, and additional charging, which include the number of calls made, the total number of minutes, and the total cost of each group.
- g) Tax base.
- h) Total VAT or equivalent tax applicable.
- i) Total amount of the invoice, including taxes. (…)"

Along with the complaint, they provide:

- Resolution from the Secretary of State for Telecommunications and Digital Infrastructures dated 05/22/2024, in which:

o "Regarding the request to obtain the itemized invoice for ***DATE.1, Royal Decree 899/2009, of May 22, which approves the Charter of Rights of Users of Electronic Communications Services (…)

In general, the operator's obligation to detail the billed concepts is included in the regulations mentioned in the previous paragraph, so a level of detail greater than that contemplated therein is not required.

After analyzing the documentation in the file, and considering that it is not possible to verify whether

the invoice has the minimum detail required by law, it is appropriate to dismiss the complaint, without prejudice to the complainant's right to obtain invoices with the legally required detail.”

o “Regarding the request for access to data related to outgoing traffic from the line ***PHONE.1 (since it is not required that the detail of all calls made appears on the invoice), it should be noted that its assessment, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, corresponds to the Spanish Agency for Data Protection, to which the complainant may address if they deem it appropriate.”

- Thread of emails exchanged between the parties, since 12/12/2023:

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Email dated 12/12/2023 from the claimant to the respondent

“I am contacting you regarding my telephone account associated with the number [***PHONE.1], whose holder was B.B.B. with ID ***NIF.1, the contact email is ***EMAIL.1 in the 02 account. My intention is to request the call log corresponding to the day ***DATE.2. I previously contacted you for this same reason but I made a mistake in the date and requested the call log for that day but from the year XXXX by error. This request is framed in the need to use this information as evidence in a legal process in which the presence of an electrician at my home on the mentioned date is questioned. As I recall and need to corroborate, he was at home during that day, and I am sure that the telephone records will confirm my location. (...)”

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Email dated 13/12/2024 from the respondent (O2) indicating that “(...) In response to your request, we confirm that we have successfully sent the Call Detail for the requested date range to your registered Email Address in our system.”

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Email dated 12/01/2024 from the claimant to the respondent

“(...) I am contacting the Customer Service of this company to file a complaint regarding what I consider an undue billing by the operator, in accordance with the facts that I will outline: As you have on record in your database, we are clients of your company, having contracted a service package related to the line ***PHONE.1 (although this line was previously in my father's name, who is still a user of 02 with the contact email ***EMAIL.1). I am in the process of a judicial procedure that is currently underway and as you already know, I need your company to send me the invoice for ***DATE.1 reflecting the calls received during that month, in order to present this document before the Courts of Justice for the appropriate purposes. I have contacted you multiple times and you state that you do not have this information.”

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Response from O2, dated 16/01/2024,

“According to your inquiry, I understand what you are indicating, but upon reviewing the system, the ID you attached is not registered in the O2 system; it is necessary for you to provide us with the ID of the holder of that line.”

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On 17/01/2024, the claimant sends a copy of the ID

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Response dated 18/01/2024

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“(…) According to your inquiry, I am attaching the invoices you requested. Additionally, please note that the call detail is only for outgoing calls, that is, those you have made. For this, it is important that you indicate the date range for which you are requesting the call details.”

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Email from the claimant dated 19/01/2024

“(…) First of all, the invoice in question would be the one covering the month of ***DATE.1; the one provided includes dates between December and January of that year. Additionally, the breakdown of outgoing calls is missing as it states that there were 119 outgoing calls made for a total of 453 minutes, but the outgoing numbers do not appear, which would be the necessary information to demonstrate that communication has been maintained with that person from my mobile phone by dialing that phone number on numerous occasions. I await your sending of the corrected document, and I send my best regards.”

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Email from the respondent dated 22/01/2024

“According to your inquiry, I am attaching the invoices you requested; I have requested the call detail corresponding to the billing period of the invoice you requested, and it will be arriving in your email within 24 to 48 hours.”

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Email from the claimant dated 01/02/2024

“I have received another email stating that there are no details of the calls, given that the invoices you kindly sent me detail that there were 119 outgoing calls made, I understand that this information exists (…).”

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Email from the respondent dated 01/02/2024

“(…) According to your inquiry, I indicate that from the date you specified, I sent you the call detail; in this case, you can review the details of those calls from the Mi O2 app. I explain it in the following link: How can I register in the Mi O2 app? | O2 Help (o2online.es).”

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Email from the claimant dated 07/02/2024

“I am writing to you as a customer of O2 to express my concern as I say without receiving the call details and request your cooperation in such an important matter as a legal process. The purpose of this letter is to once again request the details of the invoices corresponding to the month of ***DATE.1 of my telephone service account.

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I have tried to obtain this information through the usual customer service channels, but so far I have not been successful. (...),

In accordance with the current regulations on consumer protection and transparency in commercial relations, I formally request the complete details of all invoices issued during the month of ***DATE.1, including a breakdown of charges, calls made, messages sent, and any other charges or services associated with my account.”

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Email from the respondent dated 07/02/2024 (The text appears incomplete)

“First of all, we thank you for contacting us. In response to your inquiry, I have again requested the details of calls for the indicated month, which will be sent to you within 24 to 48 hours (...).”

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Email from the claimant dated 07/02/2024 (The text appears incomplete)

(…) I am contacting you regarding my telephone services account with the phone number ***PHONE.1 and my repeated request for access to the details of the invoice (...) year YYYY, (...) I have been directed to the mobile application to access the details of my invoices. However, I have noticed that the

application only shows the last 6 months of billing (attached (...) as of today), which prevents me from accessing the detailed information of the invoices from the year YYYY.

It is of utmost importance for me to have this information, especially in light of an ongoing legal matter. As a customer of O2, I have the right to access the records of (...) transactions and billing in accordance with the current legislation on consumer protection and data privacy.

In light of the above, I formally request that you provide me with the complete details of the invoices issued during the month of ***DATE.1 for my account, including a breakdown of (...) made, messages sent, and any other charges or services associated with my account during that period. (...)

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Email dated 04/03/2024 from the claimant to the OMIC of Antequera (The text appears incomplete) “(...) I have followed the procedures provided by my service provider, in this case, O2, to access the details of my invoices. However, I have encountered a limit (...) the O2 mobile application only shows the last 6 months of billing (attached screenshot of the information available to date). This has left me unable to access (...) detailed information of the invoices from the year YYYY.

I would like to emphasize that this information is crucial for me, especially considering an ongoing legal matter. As a consumer, I understand that I have the legal right to access (...) complete records of my transactions and billing, in accordance with the current legislation on consumer protection and data privacy.

Therefore, I request your assistance in resolving this issue and facilitating access to the complete details of the invoices issued during the month of ***DATE.1 for my account. It is (...) a detailed breakdown of the charges, calls made, messages sent, and any other charges or services associated with my account during that period.

It is important to remember that Spanish legislation, specifically Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, clearly establishes the rights of consumers in terms of access to personal information and transaction records. (...)”

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Response from OMIC, which does not have a date, indicating that a complaint must be filed with the entity being claimed, and that if no response is received within 10 days, it should be sent to the Telecommunications Secretariat.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent replied that “Telefónica Móviles España, S.A.U. and Telefónica de España S.A.U. have received the same request on the same date with the same file number (EXP202409541).”

“In both cases, the same complaint is transferred and information related to that same complaint is requested. In that sense, we will respond to both requests in this same document. Without prejudice to the above, it should be noted that the mobile communications service provider is Telefónica Móviles España, S.A.U.”

The respondent states that “(...) it is important to clarify that it has been verified that the claimant (Mr. A.A.A. with ID ***NIF.2) is not the holder of the line ***PHONE.1, which is the subject of the complaint, nor has he been or is he a current customer of O2. Specifically, the line ***PHONE.1 belonged to B.B.B. with ID ***NIF.1 until 01/02/2023, at which point it was canceled due to donor portability. (...)”

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“(...) the claimant also expressed this in the writings addressed to the O2 mailbox, as evidenced by the attached documentation provided by the AEPD:

“I am contacting you regarding my telephone account associated with the number (***PHONE.1), whose holder was B.B.B. with ID number ***NIF.1, the contact email is ***EMAIL.1 in the O2 account. My intention is to request the call records corresponding to the day ***DATE.2. I previously contacted you for this reason but I made a mistake in the date and requested the call records for that day but for

the year XXXX by mistake.”

In any case, Telefónica, upon receiving this file, has made the necessary checks, and there is no record of having received any requests for the exercise of rights recognized in the GDPR by the claimant or by the account holder through the channels enabled for this purpose.

The only request that this party has received is the one documented in the documentation held by this Agency and which is included in Annex 1 of your writing.

In any case, upon receiving said request, O2 responded at all times and communicated that in order to process it, it was necessary to verify the identity of the line holder. In this regard, O2 requested that the identity of the holder be verified and that the necessary documentation be provided for this purpose (this response is also included in the attached documentation): (...)

Excerpt from the email sent to him on 01/16/2024, provided by the claimant, in which they indicate that “(...) According to your inquiry, I understand what you are indicating, but upon reviewing the system, the ID you attached is not registered in the O2 system, it is necessary for you to provide the ID of the holder of that line. We await your response (...)”

“(...) Subsequently, and once the requested documentation was provided, O2 responded, as evidenced by the attached documentation. For example:

Excerpt from the email sent to him on 01/18/2024:

“According to your inquiry, I am attaching the invoices you requested. Additionally, I would like to inform you that the call details are only for outgoing calls, that is, those you have made. For this, it is important that you indicate the date range for which you are requesting the call details. (...)”

Excerpt from the email sent to him on 12/13/2023:

“(...) In response to your request, we confirm that we have successfully sent the Call Details for the requested date range to your registered Email Address in our system. (...)”

The responding party continues that “(...) O2 has responded at all times to the requests made regarding the invoices once the identity was verified.”

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the identity of the account holder, clarifying that information regarding incoming calls could not be provided to him.”

“(...) As we have indicated, the claimant is neither a customer of O2 nor has he been one up to this point. On the other hand, the holder of line B.B.B., with NIF ***NIF.1, is still a customer of O2 with Fiber 1Gb and Mobile 200GB and 5 Additional Lines of 40GB. In this sense, as long as he continues to be a customer of O2, the data of this customer will be retained for as long as strictly necessary to fulfill the purposes required for the provision of each contracted product or service and as necessary, in accordance with the applicable regulations. Specifically, and in compliance with Law 25/2007, traffic and location data are retained for 12 months and can be requested through a judicial order.”

The responding party states that “(...) The claimant requested that O2 provide him with the invoice for ***DATE.1 for the phone number ***PHONE.1. The claimant was asked to verify the identity of the line holder and subsequently the requested information was provided to him, clarifying that information regarding incoming calls could not be transferred: (...)”

“As the AEPD knows, Telefónica cannot provide that information for the following reasons:

1. On one hand, because Telefónica does not process that information for the purpose of billing for the service provided. As indicated in the regulations applicable to the provision of the service, the operator is only required to show the consumption that is outside of the allowance, that is, in those cases where additional charges are generated beyond the contracted rate.

Specifically, Article 22.2 letter e) of Royal Decree 899/2009, of May 22, which approves the Charter of Rights of Users of Electronic Communications Services, establishes that “final users of the public telephone service shall have the right to obtain detailed billing, without prejudice to the right of subscribers not to receive itemized bills, with the basic level of detail defined as that which includes the separate identification of the following elements:

e) Detail of all billed communications, excluding communications framed in low-cost tariff groups, such as metropolitan calls, those with a normal rate lower than the equivalent of 3 cents of euro per minute, or those with a normal rate lower than 20 cents of euro per communication. This detail must include: the number called, the date and time of the call, the duration of the call, the rate applied, and the total cost of the call.

Calls that are free of charge for the subscriber making the call will not appear on the detailed bill of that subscriber.”

2. On the other hand, because, in coherence with the above, since it is a traffic data, not a billing data, Telefónica only retains the information requested by the claimant in order to comply with the obligations imposed by the applicable regulations.

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Specifically, as indicated in section 6 of the O2 Privacy Policy, this traffic and location data is retained – for 12 months – for the purpose of complying with the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks (hereinafter, Law 25/2007).

Due to the above, the traffic data requested by the claimant is provided only to the agents authorized by the aforementioned regulation, when such a request is made through a judicial order.

3. Furthermore, because it is a personal data linked to the person making the call, sharing that data with the claimant could lead Telefónica to violate the privacy of the person who made the call.

That is to say, the person who made the call could accuse Telefónica of disclosing that data without having a legitimate basis for doing so. Let us remember that telecommunications legislation regulates the possibility of suppressing the identification of the calling line at the origin, so it is even possible to establish communication by telephone without identifying the caller.

In this regard, since the claimant was not requesting data related to a communication made from their terminal, but rather requested data concerning a communication received from and therefore made by a third party, such information was not provided.

4. Finally, and also in relation to the request for received calls, it should be noted that in several reports published by the Legal Office of the AEPD dated April 29 and October 28, 2011, and specifically in Report 0176/2012, the following conclusion is reached:

“As for received calls, as indicated in the previous report, there is no legal protection that justifies knowledge of the phone number of the caller; moreover, Article 38.3.f) of Law 32/2003 establishes as a right of users the ability to ‘prevent, through a simple and free procedure, the presentation of the identification of their line in the calls they generate or the presentation of the identification of their line to the user who makes a call to them.’ In its development, Articles 71 and following of RD 424/2005 regulate the possibility of suppressing the identification of the calling line at the origin, so it is even possible to establish communication by telephone without identifying the caller. If there is not even identification of the user making the call, there will be even less of a legal obligation to provide the list of received calls, not even to the user of the line. Therefore, there is no legal protection that allows the disclosure of the data of the phone number of the caller; ultimately, there is no legal provision, except in cases where the callers provide consent, to obtain the list of calls received by a corporate phone. Except, of course, when such information is requested by the Public Prosecutor's Office or Judges and Courts in C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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the exercise of functions that are proper to them, in accordance with Article 11.2.d) of the LOPD”

“In relation to whether they have responded to the claimant regarding the transfer of their complaint by this Agency, the accreditation of the response provided indicates that “(...) it is important to remember that the claimant has never been a client of O2 at any time. Furthermore, in the notification of this file, the usual form with the contact details of the claimant could not be located. In this sense, it has not been possible to proceed with the sending of any response regarding the complaint that is the subject

of this File.”

The respondent has provided a copy of an invoice dated 07/03/2023 addressed to B.B.B. which includes summaries of the consumption.

THIRD: In accordance with Articles 64.1 and 65.5 of the LOPDGDD, the decision on the admission or inadmission of the complaint must be notified to the claimant within a period of three months. If this notification does not occur after this period, when the complaint concerns the lack of attention to a request for the exercise of rights, the procedure will be considered initiated from the date on which three months have elapsed since the complaint was received by the Agency.

Consequently, on September 20, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days.

The respondent reiterates that “(...) as stated in previous allegations, it is important to insist that the claimant (Mr. A.A.A.) is not the holder of the line ***TELEPHONE.1, which is the subject of the complaint, nor has he been or is he a current customer of O2. That is to say, he was not the holder of the line ***TELEPHONE.1.

On the contrary, the holder of the line ***TELEPHONE.1 was B.B.B. with ID ***NIF.1, (...)”

That is to say, the line ***TELEPHONE.1 belonged to B.B.B. with ID ***NIF.1 until 01/02/2023, at which point he canceled it due to donor portability.”

“(...) The AEPD states that “On 23/07/2024, a response letter was received in this Agency, without it being recorded in the documentation of the file, indicating that the respondent provided an adequate response to the access request made by the claimant, informing him that since he is not the holder of the telephone line regarding which the request was made, it does not concern his data.”

As stated, the claimant is neither has been a client of O2. Likewise, and as already indicated in previous allegations, Telefónica made the relevant checks, and there is no record of having received any requests for the exercise of rights.

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of the rights recognized in the GDPR by the claimant or by the client holder through the channels enabled for that purpose. The claimant only addressed the O2 help mailbox to request the call details of a particular line (documentation that this Agency possesses and which is included in Annex 1 of its first submission).

In any case, it must be taken into account that the claimant was fully aware that he was not the holder of the line regarding which he was making the inquiry, and he himself stated this in the writings addressed to the O2 mailbox, as evidenced by the attached documentation held by the AEPD. (...)

As we have indicated, it is evident that the claimant was aware that he was not the holder of the line regarding which he was making the inquiry. Notwithstanding the above, upon receiving this request, O2 responded at all times and also made it clear that his ID number was not registered as the holder of any service:

Furthermore, he was informed that it was necessary to verify the identity of the line holder for management purposes. In this regard, O2 requested that he verify the identity of the holder and provide the necessary documentation for this. Subsequently, once this documentation was provided, O2 responded, as evidenced by the attached documentation. (...), as evidenced, for example, in the email that the responding party sent on 01/18/2024.

That is to say, O2 made it clear to the claimant that he was not the client holder of the line and responded at all times to the requests made regarding the invoices once the identity of the client holder was verified, clarifying that information regarding incoming calls could not be provided to him.

We insist that no additional communication was sent to the claimant because he is not and has never been a client of O2 at any time. Furthermore, in the notification of this file, the usual form with the contact details of the claimant was not located.

Notwithstanding the above, and considering that the AEPD has insisted that it is not recorded "in the documentation of the file, that the responding party provided an adequate response to the access request made by the claimant, informing him that since he is not the holder of the telephone line regarding which the request was made, it does not concern his data," a new response has been sent to the claimant in this regard to the email address to which previous communications were sent. This document is attached as Annex Document 1. Additionally, an image is shown as proof of its sending: The responding party has provided a copy of the email dated 11/26/2024 sent to the claimant indicating that "(...) By means of this email, we attach a response to your complaint submitted to the AEPD with file number EXPXXXX09541." as well as a copy of the aforementioned document in which it states, in summary, that "(...) we are contacting you to reiterate that your personal data does not appear in our O2 records. That is to say, to the extent that you are not the holder of the mobile line regarding which the complaint was made nor..."

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"nor has he been nor is he a current client of O2, and O2 has not processed his personal data."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on September 20, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

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"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation of...

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whether or not personal data concerning them is being processed and, in such case, the right of access to personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

In the case analyzed here, it has been established that the claimant requested the respondent a list of incoming and outgoing calls made from the telephone line ***PHONE.1 on ***DATE.1.

The exercise of the rights regulated in data protection legislation is personal and can be exercised regarding one's own personal data or those for which they hold representation.

In this case, from the examination of the documentation provided by the parties during the processing of the procedure, it is observed that the claimant has requested access to various data related to a telephone line of which they are not the owner, and there is no documentation provided that allows considering that they have the representation of the owner of that data.

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Consequently, it is appropriate to dismiss this claim.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against TELEFÓNICA MÓVILES ESPAÑA, S.A.

SECOND: TO NOTIFY this resolution to A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823
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